

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*)

Plaintiff’s first amended complaint alleges a lone cause of action for quiet title against defendant. A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subds. (b)–(c).) Moreover, “a lis pendens must be filed in a quiet title action.” (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 851; Code Civ. Proc., § 761.010, subd. (b).)

Here, defendant meets her initial burden to show the quiet title cannot be established because the court expunged the notice of lis pendens as it was void and invalid to her. (UMF No. 11.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet its burden to raise a triable issue of material fact. Accordingly, the motion for summary adjudication is granted as to the quiet title cause of action. Therefore, because the motion for summary adjudication is granted as to the only cause of action alleged against defendant, defendant’s motion for summary judgment is granted.

13. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

The order to show cause re: examination is dropped from calendar in light of the parties’ joint declaration filed with the court on June 18, 2026, that includes all information required by the court.

14. S-CV-0053210 GOODALL, BERNADETTE v. ANDRIYENKO, ANATOLIY